



STANDING ORDER NO. Traff. Mgt./03/2022

COMPLAINT OF MISBEHAVIOUR, OVERCHARGING AND REFUSAL TOWARDS PUBLIC AND ACTION THEREON RELATING TO TAXI/TSR DRIVERS

1. INTRODUCTION

The city of Delhi has witnessed a tremendous Increase in urban population and a corresponding increase in the number of taxis/auto-rickshaws (TSRs). Consequently, complaints alleging misbehavior, charging excess fare and refusal to carry passengers to their desired destination have also increased. A duty, is therefore, cast upon the local police in general and the Traffic Police in particular to check such malpractices on the part of the erring drivers and to take appropriate legal action against them. It is necessary that all police officers must be conversant with the procedure to be followed in such cases which have been outlined below.

2. MODE OF COMPLAINT

An aggrieved passenger may lodge a complaint against erring drivers by any of the following methods:

1. Physically to a police officer on road-side, Pre Paid Service Booths, in Police Stations, PCR vans, etc.
2. Through telephone on the designated helpline number 011-25844444 and 1095.
3. By post in the form of letter or by postage free complaint cards.
4. Through facebook, twitter, Whats App on 8750871493, Delhi Traffic police mobile application (Tatpar).
5. Through E-mail on the following E-mail IDs: -

CP/Delhi	delpol.service@delhipolice.gov.in
SPL. C.P./Traffic	splcp-traffic-dl@nic.in
Joint CP/Traffic	jtcpt-dtp@nic.in
DCP/Traffic (HQ)-I	dcpthq-dtp@nic.in

DCP/Traffic - SR	dcptsr-dtp@nic.in
DCP/Traffic - CR	dcptndr-dtp@nic.in
DCP/Traffic - NR	dcptnr-dtp@nic.in
DCP/Traffic - WR	dcptwr-dtp@nic.in
DCP/Traffic - ER	Dcpter07@gmail.com

3. DETAILS OF MODALITIES

The following steps be taken in each of the above mentioned modes of filing complaints:-

1. Physically to a police officer on roadside, in Pre Paid Service Booths, in Police Stations, to PCR vans, etc.
 - a) On the road side - All police officers on field duty namely Traffic, District or PCR Vans shall take cognizance of complaints of misbehaviour, overcharging and refusal by Taxi and TSR drivers. Police Officers, empowered to challan, shall make out a challan for the offence committed by the erring driver U/s 66.1/192 of the Motor Vehicle Act, 1988 or rule 11.3, 11.8, 11.9 of the Delhi Motor Vehicle Rules, 1993. Those, not empowered to challan, shall inform the Notice Branch, Delhi Traffic Police Headquarters, Dev Prakash Shastri Marg, near PUSA, New Delhi - 110012 for issuing notice u/s 133 M.V. Act along with particulars of the complainant and details of complaint and offending vehicle/driver.
 - b) In Pre Paid Service Booths - The traffic police has set up Pre-Paid Service.

Booths at the following places, to facilitate commuters using Taxi and TSR services:-

SL. No	Name of Pre-paid Booth
1.	IGI Airport T - I
2.	IGI Airport T - 2
3.	IGI Airport T - 3
4.	NDLS Paharganj
5.	H.N.D Railway Station
6.	Ajmeri Gate
7.	I.S.B.T Kashmere Gate
8.	Old Delhi Railway Station
9.	Palika
10.	Shivaji Stadium Metro Station
11.	I.S.B.T Sarai Kale Khan

12.	I.S.B.T Anand Vihar
13.	Lajpat Nagar
14.	Sarojni Nagar
15.	AIIMS
16.	RML Hospital
17.	Vasant Kunj Mall
18.	Mukarba Chowk
19.	Safdarganj Hospital
20.	Dhaura Kuan
21.	Nehru Place

The Pre Paid Service Booths are manned on a regular basis by pre-paid workers. Traffic police personnel are also deputed at these booths to assist the public for arranging the TSRs. Public persons can lodge their complaints in these booths. The traffic police personnel posted at such booths shall enquire into the complaint and prompt action shall be taken. If the driver against whom complaint is made is present, he shall be challaned on the spot. Otherwise, the Notice Branch, Delhi Traffic Police Headquarters, Dev Prakash Shastri Marg, near PUSA, New Delhi 110012 shall be informed to initiate notice u/s 133 M.V. Act.

- c) **In Police Stations**- When a complainant lodges a complaint in person at any police station or any traffic police office, legal action shall be initiated under the provisions of Motor Vehicle Act, 1988 and Delhi Motor Vehicles Rules, 1993 against the violator.
- d) **By PCR Vans** - It shall be the duty of PCR van officers to receive complaints whenever approached by the public and to inform the traffic police for taking necessary action along with particulars such as date and time of offence, place of occurrence, particulars disclosed by the complainant, registration number of the offending vehicle, type of vehicle along with the details of complaint enumerated above.
- e) **Complaints on Telephone** - Hunting lines are available at Traffic Helpline on dedicated telephone numbers **011-25844444 and 1095 in Public Interface Unit (PIU), Delhi Traffic Police Headquarters, Dev Prakash Shastri Marg, near PUSA, New Delhi 110012** for receiving calls from public on any type of complaint related to Taxis/TSRs. The Traffic Police Helpline is manned round the clock and publishes information for public through media from time to time.
Helpline - Complaints, suggestions received in traffic helpline

shall be noted down in a register by the operator in Public Interface Unit.

The same shall also be entered in a database through dedicated programme devised by Inspr. Comp/Traffic for analyzing on fortnightly basis. All the information shall be sent to the concerned branches/area traffic police officers. Complaints related to overcharging, refusal, misbehavior by TSR/Taxi drivers should be sent to Computer Centre on a prescribed proforma for issuing Notices u/s 133 Motor Vehicle Act, 1988. After getting the replies/action taken reports from the concerned ranges/branches, the complainants shall be informed about the action taken telephonically.

The functions and responsibilities of the Helpline shall be as follows:-

- a. To receive calls and take necessary action for immediate relief by communicating the same to the concerned officer.
- b. To enter the complaints/calls in computer database for analyzing the information collected, put up analysis diaries to senior officers for further directions.
- c. The complaints relating to traffic violations by motorists shall be forwarded to Computer Centre for initiating prosecution against them. In case there is an urgent need to intercept a person violating the traffic rules, a message shall be flashed to the field staff deployed in the particular area for Intercepting and prosecuting him.
- d. Complaints relating to traffic jams, accidents or any other problem which require immediate intervention shall be conveyed to the concerned TI/Circle.
- e. To inform the complainant about action taken on his/her complaint.
- f. Supervisory officers shall also be informed of the complaint requiring immediate attention.
- g. Suggestions made on traffic helpline shall be sent on the prescribed proforma to the concerned branch e.g. suggestion on traffic engineering may be sent to TE Branch, those on road safety education to Road Safety Cell and matters involving legal sanctity may be sent to Legal Cell. A copy of the complaint shall also be sent to the concerned DCP/Traffic.
- h. Feed back to public callers/complaints and fortnightly analysis of nature of complaints received from different corners.

A log book shall be maintained on the prescribed proforma (copy enclosed) in which the details of the complaints and their

final disposal shall be entered. The Helpline desk will work in co-ordination with other sections of the Public Interface Unit.

- (f) **By post** - The DCP/Traffic (HQ-I) shall arrange to print and distribute postage free complaint cards among the public for lodging complaints against erring drivers. Such complaint cards shall contain the details as outlined earlier. All officers of Traffic Police, PCR Vans, local police, all GOs shall arrange to collect such cards from **DCP/Traffic (HQ-I)** and keep them in their vehicles for distribution to public. These cards shall be distributed to commuters for lodging complaints against drivers of Taxis and TSRS for over-charging, misbehavior, refusal etc., if any.
- (g) Facebook/Twitter/Mobile App - Delhi Traffic Police has also introduced new interfaces viz. facebook, twitter, Whats App (Mobile No. 8750871493), mobile application (**Tatpar**) or social media network with an objective to envisage direct communication and participation of community and general public in the management of traffic and transportation needs etc. of the city. The public can lodge their complaints against Auto Rickshaw and Taxi drivers for refusal, overcharging, misbehaviour or harassment on these platforms. Traffic Police shall take suitable action immediately by initiating proceedings u/s 133 Motor Vehicles Act 1988 for issuance of notices to the violators and subsequent prosecution by Notice Branch.
- (i) **E-mails** - All the complaints received through E-mail against Taxis/TSRs shall be forwarded to Incharge Notice Branch, Delhi Traffic Police for initiating proceedings u/s 133 Motor Vehicles Act, 1988 for issuance of notices to the violators and subsequent prosecution.

4. **ACTION BY NOTICE BRANCH**

The Incharge Notice Branch, Traffic shall ensure that notices u/s 133 M.V Act are issued to the violators on the complaints received from general public through all above means. On the basis of the reply of the driver/owner of the vehicle complained against, further action shall be initiated as follows :-

- a) Vehicle driver/owner responds to the notice
- b) The driver/owner of vehicle who pleads guilty to the charge shall be charged compounding amount as per the rules.
- c) The driver/owner of vehicle who wishes to contest the charge shall be given a date for appearance in the designated court

and the notice shall be forwarded to the concerned court for further action.

- d) Vehicle owner does not respond to the notice If a period of 30 days elapses from the date of issue of notice, and the erring owner does not respond, a challan shall be made out and sent to the concerned court for further action.

5. REGISTERS

The officer incharge of the Notice Branch shall maintain registers for complaints, their disposal, details of challans (compounded at Notice Branch, sent to court, action by court etc.). Incharge Notice Branch shall also submit fortnightly/monthly reports indicating details of action taken against each mode of complaint to supervisory officers and also keep the relevant records in the Notice Branch. DCP/Traffic (HQ - I) shall inspect the records in this regard on a regular basis.

6. SUSPENSION OF PERMIT OF TAXI/TSR

Violations such as misbehaviour, overcharging, refusal to carry passengers, use of tampered defective meter are a violation of permit conditions and should be dealt for suspension of permits by ACSP/Traffic Districts who have been empowered by the STA to suspend permits of commercial vehicles for violation of permit conditions. Details of notices u/s 133 M.V. Act, compounded by driver/owner of the offending Taxi/TSR in Notice Branch shall be informed to concerned ACSP/Traffic - Districts by TI/Notice Branch alongwith all details, for Initiating proceedings u/s 86 M.V. Act for suspension of permits.

In cases where the driver/owner has desired to contest the notice in the court, details shall be forwarded to concerned ACsP/Traffic-Districts for following up the matter in the concerned courts through respective Naib Courts. On imposition of fines/conviction, permit suspension proceedings shall be initiated against the offending Taxi/TRS driver.

7. SUPERSESSON CLAUSE

This Standing order supersedes the earlier Standing Order No. 20/2014 issued vide No.4604-4966/Record Branch/PHQ dated 09.12.2014.

8. **DISCLAIMER**

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

27.5.22

No. 29501 - 29650 /Record Branch/PHQ dated Delhi, the 27-5-2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.